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May 15, 2014					
FEDERAL	MARITIME	COMMISSION			

FEDERAL MARITIME COMMISSION

DOCKET NO. 13-04

STREAK PRODUCTS, INC., and SYX DISTRIBUTION, INC.

v.

UTi, UNITED STATES, INC.

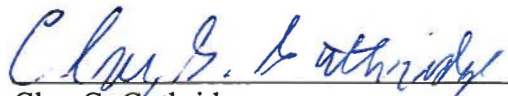
**ORDER DISMISSING WITHOUT PREJUDICE RESPONDENT'S MOTION TO FILE
AMENDED ANSWER TO AMENDED VERIFIED COMPLAINT**

On May 12, 2014, Respondent UTi, United States, Inc. (UTi) filed Respondent and Counterclaimant UTi, United States, Inc.'s Motion for Leave to File an Amended Answer to the Amended Verified Complaint of Streak Products, Inc. and SYX Distribution, Inc. This is a non-dispositive motion. *See* 46 C.F.R. § 502.69(g). Commission Rules state:

Before filing a non-dispositive motion as defined in § 502.69(g) of this subpart, the parties must attempt to discuss the anticipated motion with each other in a good faith effort to determine whether there is any opposition to the relief sought and, if there is opposition, to narrow the areas of disagreement. The moving party must state within the body of the motion what attempt was made or that the discussion occurred and whether the motion is opposed.

46 C.F.R. § 502.71(a).

UTi's motion does not "state within the body of the motion what attempt was made or that the discussion occurred and whether the motion is opposed." Therefore, the motion is **DISMISSED** without prejudice for failure to comply with Commission Rule 71(a).


Clay G. Guthridge
Administrative Law Judge